

NON-DISCLOSURE AGREEMENT

This Mutual Nondisclosure Agreement (this "**Agreement**"), effective as of 31/05/2026, is made between

Karthik Agarwal

(hereinafter referred to as "**Karthik**")

and Anuj Sharma

(hereinafter referred to as "Anuj Sharma").

Karthik and Anuj Sharma

are hereinafter individually referred to as "**party**" and collectively as "**parties**".

RECITALS

The Parties are entering into a business relationship and are willing to exchange certain information which could be critical and peculiar to their respective businesses. This Agreement looks at determining and regulating the disclosures made by a Party ("**Disclosing Party**") to the other Party ("**Receiving Party**") of information which is confidential to the Disclosing Party in connection with the proposed business relationship between the Parties (hereinafter "**Purpose**"). In respect of the aforesaid, the Parties agree that the Disclosing Party shall disclose and the Receiving Party shall maintain the confidentiality and not disclose the 'Confidential Information' (hereinafter as defined below) to any other person and only use the Confidential Information for the Purpose stated herein subject to the terms and conditions of this Agreement

1. DEFINITIONS:

"Product" refers to the Software products developed by Karthik Agarwal and his team at WeddAi with domain name wedd.ai

2. PURPOSE:

The parties to this Agreement desire to engage in discussions regarding present and/or potential future business relationships. The parties intend to engage in substantive discussions and sharing of Confidential Information in relation to the Product, certain new and useful business opportunities, trade secrets including but not limited to data and information. In connection with these discussions, it may be necessary and/or desirable for the Disclosing Party to provide the Receiving Party with, or allow access to the Confidential Information. Therefore, the Receiving Party, individually and on behalf of those they represent, agrees that they are under an obligation of confidentiality and non-disclosure. The Disclosing Party believes, and the Receiving Party hereby agrees, that the Disclosing Party's Confidential Information has significant commercial value that

would be diminished by unauthorized disclosure. Accordingly, the commitments of confidentiality in this Agreement are a condition to the Receiving Party's willingness to engage in any commercial relationship.

3. TERM AND TERMINATION:

This Agreement shall, remain in force from the effective date thereof until expressly terminated by the mutual consent of both the parties. This Agreement automatically will terminate upon the earlier of (i) termination of all written agreements between the parties regarding the Purpose and the commercial relationship, or (ii) if no agreements are executed, termination of discussions between the parties regarding the Purpose or delivery of written notice terminating this Agreement.

4. CONFIDENTIAL INFORMATION:

"Confidential Information" shall mean all information related to the Product, its know-how, ideas, designs, documents, concepts, technology, source code, codes, commercial knowledge, and other materials of a confidential nature and includes but is not limited to, information of a commercial, technical or financial nature which contains amongst other matters, trade secrets, know-how, patent and ancillary information and other proprietary or confidential information, regardless of form, format, media including without limitation any other information that the Disclosing Party reasonably believe is "Proprietary" or "Confidential" and if furnished in writing is marked "Proprietary" or "Confidential", showing the date on which it is furnished; or if furnished orally or by means other than in writing is identified at the time it is furnished as Confidential Information and also includes those communicated or obtained through meetings, documents, correspondence or inspection of tangible items, facilities or inspection at any site or place including without limitation:

- (a) Research, development or technical information, confidential and proprietary information on products, intellectual property rights;
- (b) Information relating to the officers, directors or employees of the Disclosing Party and its Related Corporations;
- (c) The details and design of the Product which might be received by the "Receiving Party"; This clause shall survive the termination of this Agreement and be valid in perpetuity.

5. OBLIGATIONS OF CONFIDENTIALITY:

The Receiving Party undertakes to the Disclosing Party that:

- (a) The Receiving Party will keep the Confidential Information secret at all times
- (b) The Receiving Party will not disclose, whether intentionally or unintentionally, the Confidential Information even within its group of companies or its subsidiaries thereof wherever applicable

- (c) The Receiving Party will not disclose, whether intentionally or unintentionally, the Confidential Information even with any of their Contractors
- (d) The Receiving Party will not use it in whole or in part for any purpose except for the Permitted Purpose. The Receiving Party undertakes to take proper and all reasonable measures to ensure the protection, confidentiality and security of the Confidential Information.
- (e) The Receiving Party shall not disclose or communicate Confidential Information to any third party, except as herein provided. The Receiving Party shall protect such information from disclosure by reasonable means, including but not limited to at least the same minimal level of security that Receiving Party uses for its most crucial proprietary and trade secret information.
- (f) The Receiving Party shall reasonably protect the Confidential Information with not less than the same degree of care exercised by its own personnel to protect its own, or publication of its own, most valuable confidential and proprietary information.
- (g) The Disclosing Party shall permit access to its Confidential Information to the Receiving Party's agents or employees or third parties only if such disclosure is reasonably believed to be necessary to the purposes of the Receiving Party evaluating, contemplating, recommending, or engaging in any program or service offered by the Disclosing Party or for the purpose of entering into a business relationship with the Disclosing Party, and only if said agents, employees, or third parties:
 - (i) reasonably require access to the Confidential Information for purposes approved by this Agreement, and
 - (ii) have been apprised of this Agreement and the Receiving Party's obligations to maintain the trade secret status of Confidential Information and to restrict its use as provided by this Agreement.

6. EXCEPTIONS:

The above obligations of confidentiality shall not apply to any information which the Receiving Party can show by written records:

- a) was publicly known at the time of disclosure or subsequently becomes publicly known through no fault of the Receiving Party; or
- b) was discovered or created by the Receiving Party before disclosure by the Disclosing Party; or
- c) was learned by the Receiving Party through legitimate means other than from the Disclosing Party or Disclosing Party's representatives; or
- d) was disclosed by the Receiving Party with Disclosing Party's prior written approval.

7. LIABILITY FOR BREACH OF CONFIDENTIALITY CLAUSE:

- 7.1 Notice of Unauthorized Use. The Receiving Party will notify the Disclosing Party promptly upon discovery of any unauthorized use or disclosure of Confidential Information or any other breach of this Agreement by the Receiving Party. The Receiving Party will cooperate with the Disclosing Party to help the Disclosing Party regain possession of such Confidential Information and prevent its further unauthorized use and disclosure.
- 7.2 The Receiving Party shall pay damages to the Disclosing Party if the Receiving Party discloses any of the Confidential Information of the Disclosing Party. If the Confidential Information is disclosed by any member of the group of companies /employees/ contractors of the Receiving Party then the Receiving Party shall be liable to pay damages to the Disclosing Party. The damages payable by the Receiving Party shall be proportional to the losses incurred by the Disclosing Party as decided by the Disclosing Party thereof. Monetary damages shall be paid by the Receiving Party for any losses incurred to the Disclosing Party as a result of breach committed by the Receiving Party as discussed in the above clauses. The exact amount to be paid by the Receiving Party shall be determined at the time such a situation arises.
- 7.3 Parties agree that any violation or threatened violation of this agreement may cause irreparable injury to either of them entitling the affected party to seek injunctive relief in addition to all legal remedies as mentioned above.

8. PROPRIETARY RIGHTS:

The Receiving Party acknowledges and agrees that the Disclosing Party own all intellectual property rights in the Product/Confidential Information. Except as expressly stated herein, this Agreement does not grant the Receiving Party any rights to, or in, patents, copyrights, database rights, trade secrets, trade names, trademarks (whether registered or unregistered), or any other rights or licenses in respect of the Product/Confidential Information.

9. RETURN OF CONFIDENTIAL INFORMATION:

Upon the termination of this agreement Parties shall promptly, but in no event more than ten (10) business days of the termination, return to each other all Confidential Information or destroy all Confidential Information, and upon request by either of them, provide certification thereof.

10. AMENDMENTS:

Any change or amendment to this Agreement, including oral modification supported by new consideration, must be reduced to writing and signed by all Parties before it will be effective.

11. WAIVER:

No waiver or default of any of this agreement by any party shall be implied from any omission of such party to act against the defaulting party. One or more waivers of any covenant, terms or condition of this agreement by any party shall not be considered to be waiver to render unnecessary consent or approval of said party of any subsequent or similar acts or omission.

12. NO REPRESENTATIONS:

The Receiving Party understands that the Disclosing Party makes no representation or warranty as to the accuracy or completeness of the information it provides to the Receiving Party. The Receiving Party agrees that neither the Disclosing Party, nor any of its advisers, representatives, agents, or employees shall be held liable for utilization of Confidential Information which results from the Receiving Party's use of said information.

13. COMPLIANCE WITH LEGISLATION:

The Receiving Party warrants that all applicable relevant laws, ordinances, regulations and rules whatsoever valid and subsisting in India on personal data privacy are complied, observed and performed.

14. GOVERNING LAW AND JURISDICTION:

This Agreement shall be governed by the laws of India. The courts at Bangalore, India shall have exclusive jurisdiction over any matters dispute arising out of the Agreement between the parties shall be resolved in.

15. SEVERABILITY:

If any portion of this agreement is deemed to be invalid or unenforceable, this Agreement shall be considered as if such provision had not been part of it.

16. MISCELLANEOUS:

As used in this Agreement, the following terms shall have the following meanings:

- (a) Except for the limited right to use granted in this Agreement, no right or license, either express or implied, under any patent, copyright, trade secret or other intellectual property right is granted hereunder.
- (b) No agency or partnership relationship is created between the parties by this Agreement.
- (c) This Agreement constitutes the entire understanding between all the parties and supersedes all previous understandings, agreements, communications and representations, whether written or oral, concerning the discussions by and between the parties hereto and the Confidential Information.

- (d) If a provision of this Agreement is held invalid under any applicable law, such invalidity will not affect any other provision of this Agreement that can be given effect without the invalid provision. Further, all terms and conditions of this Agreement will be deemed enforceable to the fullest extent permissible under applicable law, and, when necessary, the court is requested to reform any and all terms or conditions to give them such effect.
- (e) All notices hereunder will be given in writing, will refer to this Agreement and will be personally delivered or sent by overnight courier, electronic mail, or registered or certified mail (return receipt requested) to the address set forth below the parties' signatures at the end this Agreement.

IN WITNESS WHEREOF, the parties hereto have individually and by their duly authorized representatives executed and delivered this Agreement, to be effective as of the date first written above.

For and on behalf of **WeddAi**



Karthik Agarwal
Founder
Email: karthik@wedd.ai



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